

## OFFICE OF THE SECRETARY

P.O. Box 942883  
Sacramento, CA 94283-0001



July 9, 2018

Honorable Michael W. Sweet  
Judge of the Superior Court  
County of Sacramento  
720 Ninth Street  
Sacramento, CA 95814

Re: Rodriguez, Tommy Jack  
CDC No.: AI6969  
Case No.: 09F04182  
Date of Sentence: September 23 2011,

Dear Honorable Michael W. Sweet:

The purpose of this letter is to provide the court with authority to resentence Tommy Jack Rodriguez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rodriguez was sentenced in 2011, and was convicted of section 245, subdivision (a)(1), AWDW W/LIKELIHOOD OF GBI. The trial court sentenced inmate Rodriguez on September 23, 2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rodriguez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rodriguez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN  
Secretary

Enclosures:  
Abstract of Judgment-Prison Commitment-Determinate  
Minute Order  
Felony Information

cc: Honorable David De Alba, Sacramento County Presiding Judge  
Sacramento District Attorney  
Public Defender



AI 6969

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE**  
 [NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

**FILED** **ENTERED**  
**SEP 23 2011**  
 By Kelly Sullivan, Deputy Clerk

|                                                                                 |                                     |                                                                                                      |             |
|---------------------------------------------------------------------------------|-------------------------------------|------------------------------------------------------------------------------------------------------|-------------|
| SUPERIOR COURT OF CALIFORNIA, COUNTY OF: <b>SACRAMENTO</b>                      |                                     |                                                                                                      |             |
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: <b>TOMMY JACK RODRIGUEZ</b> |                                     | DOB: <b>02-03-78</b>                                                                                 | 09F04182 -A |
| AKA:                                                                            |                                     |                                                                                                      | -B          |
| CII NO.: <b>A10502635</b>                                                       |                                     | <input type="checkbox"/> NOT PRESENT                                                                 | -C          |
| BOOKING NO.:                                                                    |                                     | <input type="checkbox"/> AMENDED ABSTRACT                                                            | -D          |
| COMMITMENT TO STATE PRISON<br>ABSTRACT OF JUDGMENT                              |                                     |                                                                                                      |             |
| DATE OF HEARING<br><b>09-23-11</b>                                              | DEPT. NO.<br><b>20</b>              | JUDGE<br><b>MICHAEL W. SWEET</b>                                                                     |             |
| CLERK<br><b>K. SULLIVAN</b>                                                     | REPORTER<br><b>K. GRAHAM, #5731</b> | PROBATION NO. OR PROBATION OFFICER<br><b>A-458,557</b> <input type="checkbox"/> IMMEDIATE SENTENCING |             |
| COUNSEL FOR PEOPLE<br><b>LELAND WASHINGTON, DDA</b>                             |                                     | COUNSEL FOR DEFENDANT<br><b>JESSE ORTIZ, CAC</b> <input checked="" type="checkbox"/> APPTD.          |             |

1. Defendant was convicted of the commission of the following felonies:  
☐ Additional counts are listed on attachment  
 (number of pages attached)

| COUNT | CODE | SECTION NO. | CRIME                     | YEAR CRIME COMMITTED | DATE OF CONVICTION (MO./DATE/YEAR) | CONVICTED BY |       |      | TERM (L, M, Y) | CONCURRENT | CONSECUTIVE 1/3 VIOLENT | CONSECUTIVE 1/3 NON-VIOLENT | CONSECUTIVE FULL TERM | INCOMPLETE SENTENCE (Per PC 1170.28) | 654 DAY | PRINCIPAL OR CONSECUTIVE TIME IMPOSED |      |
|-------|------|-------------|---------------------------|----------------------|------------------------------------|--------------|-------|------|----------------|------------|-------------------------|-----------------------------|-----------------------|--------------------------------------|---------|---------------------------------------|------|
|       |      |             |                           |                      |                                    | JURY         | COURT | PLEA |                |            |                         |                             |                       |                                      |         | YRS.                                  | MOS. |
| 1     | PC   | 245(a)(1)   | AWDW W/ LIKELIHOOD OF GBI | 2009                 | 03-03-11                           |              |       | X    | M              |            |                         |                             |                       |                                      |         | 6                                     | 0    |
|       |      |             |                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                      |         |                                       |      |
|       |      |             |                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                      |         |                                       |      |
|       |      |             |                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                      |         |                                       |      |
|       |      |             |                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                      |         |                                       |      |
|       |      |             |                           |                      |                                    |              |       |      |                |            |                         |                             |                       |                                      |         |                                       |      |

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| COUNT | ENHANCEMENT     | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------|-----------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|
| 1     | PC 186.22(b)(1) | 5 YEARS                        | 12022.7(a)  | 3 YEARS                        |             |                                | 8 0   |
|       |                 |                                |             |                                |             |                                |       |
|       |                 |                                |             |                                |             |                                |       |
|       |                 |                                |             |                                |             |                                |       |
|       |                 |                                |             |                                |             |                                |       |
|       |                 |                                |             |                                |             |                                |       |

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

| ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | ENHANCEMENT | TIME IMPOSED OR "S" FOR STAYED | TOTAL |
|-------------|--------------------------------|-------------|--------------------------------|-------------|--------------------------------|-------|
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |
|             |                                |             |                                |             |                                |       |

4. ☒ Deft. sentenced per: ☒ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

| COUNTY | CASE NUMBER |
|--------|-------------|
|        |             |
|        |             |
|        |             |

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **14** **0**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.



|                                                                          |    |    |    |
|--------------------------------------------------------------------------|----|----|----|
| PEOPLE OF THE STATE OF CALIFORNIA vs.<br>DEFENDANT: TOMMY JACK RODRIGUEZ |    |    |    |
| 09F04182                                                                 | -A | -B | -C |
|                                                                          |    |    | -D |

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.  
 \$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☒ Amount to be determined to ☐ victim(s)\* ☒ Victim's of Violent Crime Program  
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund  
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)\* ☐ Restitution Fund

☐ \* Victim name(s), if known, and amount breakdown in item 11, below. ☐ \* Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive  
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$40.00 per PC 1465.8.

10. TESTING a. ☒ Compliance with PC 296 verified b. ☐ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

RESTITUTION TO VICTIMS OF VIOLENT CRIME PROGRAM IN AN AMOUNT TO BE DETERMINED, PURS TO 1202.4 PC AND 2085.5(b) PC - JOINT AND SEVERAL WITH CO-DEFENDANT ADRIAN JUSTIN RODRIGUEZ

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit  
 Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin:

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.  
 b. ☐ at resentencing per decision on appeal.  
 c. ☐ after revocation of probation.  
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)  
 e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

| CASE                      | TOTAL CREDITS | ACTUAL                            | LOCAL CONDUCT                                                                |
|---------------------------|---------------|-----------------------------------|------------------------------------------------------------------------------|
| A                         | 943           | 820                               | 123 <input type="checkbox"/> 4019 <input checked="" type="checkbox"/> 2933.1 |
| B                         |               |                                   | <input type="checkbox"/> 4019 <input type="checkbox"/> 2933.1                |
| C                         |               |                                   | <input type="checkbox"/> 4019 <input type="checkbox"/> 2933.1                |
| D                         |               |                                   | <input type="checkbox"/> 4019 <input type="checkbox"/> 2933.1                |
| Date Sentence Pronounced: |               | Time Served in State Institution: |                                                                              |
| 09-23-11                  |               | DMH <input type="checkbox"/>      | CDCR <input type="checkbox"/> CRC <input type="checkbox"/>                   |

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.  
 To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.  
☒ other (specify): DVI

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

|                                   |                  |
|-----------------------------------|------------------|
| DEPUTY'S SIGNATURE<br>K. SULLIVAN | DATE<br>09-23-11 |
|-----------------------------------|------------------|